

BARCO

Rent a Truck

Page One
Rental Agreement

717 South 5600 West
Salt Lake City, Utah 84104
Phone (801) 532-7777
E-Fax (877) 865-2316

Scheduled Delivery: 9/15/2025 Austin, TX
Rental Agreement

1-800-453-4761

111114

Date 9/11/2025

RENTER TerraFirma, Inc. - 08244		VEHICLE NUMBER SF326729		YEAR 2025		
ADDRESS 12500 Nutty Brown Rd		LICENSE NUMBER S39 9CA		VIN 1GB4KSEY0SF326729		
CITY Austin	STATE TX	ZIP 78737	MAKE CHEVROLET	COLOR WHITE		
TELEPHONE			BODY STYLE CAB CHASSIS	MODEL SILVERADO 3500 SERVICE BODY		
PURCHASE ORDER NO.		ORDERED BY Kirchon, Angelo		MAX PAYLOAD (LBS) 4900		
DELIVERY ADDRESS 12500 Nutty Brown Rd		AGREED UPON VALUE OF VEHICLE \$ 74053.18				
CITY Austin	STATE TX	ZIP 78737	DATE IN			
TELEPHONE			DATE OUT 9/15/2025			
- ALL AUTHORIZED DRIVERS MUST BE OVER AGE 21 AND CURRENTLY LICENSED TO DRIVE. - RENTER REPRESENTS THAT RENTER'S INSURANCE COVERS ANY PERSON DRIVING THE VEHICLE. - VEHICLE IS NOT ALLOWED OUTSIDE THE CONTERMINOUS UNITED STATES. - ALL TRAFFIC, TOLL AND PARKING VIOLATIONS ARE YOUR RESPONSIBILITY. - A MONTHLY RECURRING LATE FEE OF 3% WILL BE ADDED TO ALL PAST DUE BALANCES. - SMOKING INSIDE THE VEHICLE IS STRICTLY PROHIBITED. A \$1,000 VIOLATION FEE WILL BE ASSESSED FOR VEHICLES WITH EVIDENCE OF SMOKING.			MILES IN			
			MILES OUT 10			
			MILES DRIVEN			
BARCO'S BILLING CYCLE IS MONTHLY. THE MONTHLY PRICE QUOTED BY BARCO WILL BE BILLED AT AN ACTUAL DAILY RATE. THE DAILY RATE IS CALCULATED BY DIVIDING THE MONTHLY RATE BY 30 DAYS. A MONTHLY RECURRING LATE FEE OF 3% WILL BE ADDED TO ALL PAST DUE BALANCES. DAILY RATE IS BASED ON 24 HOUR DAY BARCO WILL DELIVER A TRUCK AS APPROVED FOR EACH RENTAL. THE MINIMUM RENTAL PERIOD IS 31 DAYS. BARCO RESERVES THE RIGHT TO EXCHANGE ANY TRUCK FOR A REPLACEMENT TRUCK AT ANY TIME DURING THE RENTAL PERIOD AND RENTER AGREES TO ACCEPT SUCH REPLACEMENT TRUCK. IT IS RENTER'S RESPONSIBILITY TO FOLLOW THE MANUFACTURER'S MAINTENANCE SCHEDULE AS OUTLINED IN THE OWNER'S MANUAL, WHICH INCLUDES, BUT IS NOT LIMITED TO: FLUIDS, FILTERS, ALIGNMENT, AND TIRES. RENTER IS RESPONSIBLE FOR ANY AND ALL DAMAGE TO THE VEHICLE. BARCO PROVIDES A FREE \$500 DAMAGE CREDIT FOR EACH VEHICLE RETURNED. IF APPLICABLE, A MILEAGE OVERAGE CHARGE WILL BE CALCULATED UPON RETURN OF THE VEHICLE. BARCO MAKES NO WARRANTIES, EXPRESS, IMPLIED OR APPARENT, REGARDING VEHICLES, NO WARRANTY OF MERCHANTABILITY AND NO WARRANTY THAT A VEHICLE IS FIT FOR A PARTICULAR PURPOSE THE PERSON SIGNING BELOW IS AUTHORIZED TO SIGN FOR RENTER. RENTER AGREES TO BE BOUND BY THE TERMS AND CONDITIONS ON BOTH SIDES OF THIS RENTAL AGREEMENT AND TO RETURN VEHICLE TO US ON OR BEFORE DUE BACK DATE. X <u>Angelo Kirchon</u> SIGNATURE OF PERSON AUTHORIZED TO SIGN <u>Angelo Kirchon</u> (PRINT NAME OF PERSON SIGNING FOR RENTER) <u>Gabriela Perez</u> SIGNATURE AUTHORIZED BARCO REPRESENTATIVE			MONTHLY FREE MILES 3500 @ 117 per day		OVERAGE FEE \$0.25 per mile	
			BASE DAILY RATE @		73.27	
			BASE WEEKLY RATE @			
			BASE MONTHLY RATE @		\$2198.00	
			TOTAL-TIME AND MILEAGE			
			TAX RATE		8.25	
			BRONZE DW FREE (UP TO \$500)		\$0.00	
			ADDITIONAL DW		\$0.00	
			DELIVERY FEE		\$500.00	
			RETURN FEE		\$500.00 on return	
CLEANING FEE		\$195.00 on return				
SECOND KEY		\$150.00				
PAYMENT TERMS		NET 0 - ACH				
CONTRACT SUBJECT TO FINAL AUDIT						
Additional Services and Notes:						
INITIAL REQUIRED <u>AK</u>						

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BARCO Rent-A-Truck and/or one of its affiliates ("BARCO," "we," "us," or "our") agrees to rent to the person/firm shown on Page 1, on the reverse side hereof ("Renter," "you," or "your"), the motor vehicle listed on Page 1, and related equipment and manuals ("Vehicle"), subject to all terms and conditions of this Agreement, in consideration whereof Renter acknowledges and agrees as follows:

1. Vehicle or its proceeds may be subject to a security interest held by lenders, or interests of other unidentified parties ("Interest Holders"). Vehicle is in good condition, and Renter will return Vehicle to us at the place and on the date shown on Page 1, or sooner on our demand, in the same condition you received it. We reserve the right to inspect Vehicle at any time, wherever located. If there ever is any default or violation of any of the terms of this Agreement or any Other Agreement, BARCO may, at any time, without notice or demand of any kind, terminate your use of Vehicle and peacefully recover or repossess Vehicle, wherever located, and if Vehicle is reclaimed by us in this manner, you agree you shall not have, and you hereby irrevocably waive, any claim of any kind against us arising from or related in any way to the reclaiming of Vehicle by BARCO, including any claim for any consequential damages or other financial loss or cost of any kind from Vehicle being reclaimed.
2. The following restrictions are cumulative, and each shall apply to every use, operation or driving of Vehicle: Under no circumstances shall Vehicle ever be used, operated or driven by any person: (a) under the age of 21; (b) not at that time duly licensed to drive; (c) in violation of any law, ordinance, or regulation of any government entity; (d) while under the influence of alcohol, drugs, narcotics, or any other intoxicant, used with or without prescription; (e) in any race or speed test, demonstration or contest; (f) for transportation of persons for hire; (g) to push or tow any vehicle; (h) to transport a weight in excess of the maximum payload specified on Page 1; (i) to carry any hazardous material or substance, including but not limited to any explosives or corrosives; (j) who has given you or us a false name, age, address, or any other false or misleading information; and/or (k) except Renter, any Driver (shown on Page 1), and, with your prior permission, a driver who is a member of your immediate family residing in your home, your employer, your employee, or a fellow employee or partner, provided their use is within the scope of such permission and in the ordinary course of business (each an "Authorized Driver"). You and any other Authorized Driver will be jointly and severally responsible for all obligations related to Vehicle under this Agreement.
3. Vehicle is accompanied by an Owner's Manual. Renter shall perform, at its own expense, all maintenance on Vehicle outlined in the Owner's Manual. All Renters shall follow all steps outlined in the Owner's Manual or by any indicator light, message or warning that may appear on Vehicle. You shall be liable to BARCO for any cost or loss we may incur by reason of your failure to do so.
4. Renter will pay BARCO, on demand, all charges, including but not limited to: rental payments, service, applicable taxes, other charges on Page 1 and/or any other amount to be paid under this Agreement. Renter's failure to pay when due any amount to be paid under this Agreement, or to fulfill any other obligation hereunder, is a default under this Agreement. Renter's failure to fulfill any obligation owed to BARCO under any other Rental Agreement Renter has with BARCO (each an "Other Agreement") also shall constitute a default hereunder. Upon any default, BARCO may, but shall not be required to, declare all amounts due to BARCO by Renter (under this Agreement or otherwise) to be immediately due and payable in full, and we may exercise any of our other rights hereunder, or otherwise granted to us by law. BARCO reserves the right to apply any open credits to past due invoices, and also shall hold any open credits or overpayments from Renter to be applied to amounts owed on your other vehicle rentals with us, including any future vehicles rentals, unless and until Renter makes written demand for return of the same. BARCO's invoices to Renter may include other ordinary and customary payment terms, such as the payment due date, applicable late fees, interest charges on any delinquent amount owed by Renter, and the like, and the terms of such invoices are incorporated in this Agreement by reference.
5. You agree to reimburse BARCO upon demand for all loss or damage whatsoever (regardless of negligence) to Vehicle, including diminished value charges, and are completely responsible and liable for any abandonment, disappearance or theft of Vehicle. You agree to immediately report to all appropriate law enforcement agencies any accident involving or theft of Vehicle, and to immediately (in all events within 24 hours) report to us any accident or other damage to or theft of Vehicle.
6. You are responsible to the fullest extent allowed by law for, and shall indemnify, defend and hold harmless BARCO and each of BARCO's officers, employees, agents, Interest Holders or insurers (each an "Indemnitee") of, from and against, all demands, claims, causes of action, judgments, losses, damages, liabilities, fines, penalties, costs and expenses, including, without limitation, reasonable attorneys' fees, arising from the possession, use, operation and/or return of Vehicle by you or any other person during the term of this Agreement, including, without limitation, any accident involving Vehicle, or on account of any personal injury, death or other damage to person or property occasioned by the possession, use or operation of Vehicle during the term of this Agreement, and/or any litigation commenced by or against any Indemnitee(s) or to which they are made a party. If any action or proceeding is brought against any Indemnitee(s) by reason of any matter set forth in the preceding sentence, Renter, on written notice from BARCO, shall defend such Indemnitee(s) at Renter's expense with counsel reasonably satisfactory to BARCO.
7. During the entire term of this Agreement, Renter, at your sole cost and expense, shall procure and continue in force insurance with respect to Vehicle to cover (a) property damage and bodily injury combined (based on primary coverage and excess or "umbrella coverage" combined) for not less than \$1,000,000 per occurrence, and (b) collision, fire, theft and comprehensive coverage in the amount equal to the value of Vehicle as shown on Page 1 (with a maximum deductible acceptable to us), listing BARCO as Loss Payee and Additional Insured. Provided, however, that the insurance provided for above shall not limit in any way your liability under this Agreement. Such insurance shall be based on Renter's own coverage, and not in combination with any coverage we may carry. Such insurance shall require that BARCO be given at least 10 days advance written of any cancellation, reduction or other material change in coverage, and agree to separate from any notice BARCO may receive from the insurance company, you will provide us with at least 10 days advance written notice of any cancellation, reduction or other material change in coverage. You will provide us with whatever written proof of the required coverage we request.
8. BARCO may provide excess insurance on Vehicle over any other valid and collectible insurance Renter provides as an insured under another policy or otherwise. BARCO's policy (if any) does not cover you or any other person with respect to injuries sustained to person or property while operating, alighting from, getting into, or riding in or upon Vehicle, and also does not apply to any obligations for which Renter or any Vehicle driver, or any insurance carrier as your or his insurer, may be held liable under any worker's compensation laws, disability benefits law, unemployment compensation or any similar law. You and/or any driver agree to cooperate with us and our insurer in the investigation and defense of any legal action, and further agree that neither shall do anything after loss to prejudice our or our insurer's rights with respect to defense, investigation or settlement.
9. BARCO is not liable for loss of or damage to any property left, stored, loaded or transported in or upon Vehicle (a) at any time, whether Vehicle is in the physical possession of Renter, BARCO, or anyone else, or (b) at any place, including any BARCO garage or location, or (c) whether or not such loss or damage resulted from the negligence or other fault of BARCO or any Indemnitee. Renter assumes all risk of such loss or damage and waives all claims against us by reason thereof, and agrees that the indemnity provision in Paragraph 6, above, shall apply to any such loss or damage.
10. Renter and any Vehicle driver shall in no event be deemed our agent or employee of BARCO in any manner or for any purpose. Renter will not authorize or allow any repairs on or liens to be placed against Vehicle without our advance express consent, and you further agree to pay all unauthorized charges in connection with any liens or repairs.
11. Any subletting or reletting of Vehicle is prohibited and void.
12. Renter acknowledges and agrees that Vehicle is equipped with telematics, that the information provided by this technology belongs to us and us alone, and that we can use it for any purpose we deem to be appropriate, including the recover and repossession of Vehicle from you as permitted under this Agreement. If you fail to return Vehicle to the place specified in this Agreement within 24 hours after the time specified, or any earlier date specified in any written demand by BARCO, you shall be presumed to be in unlawful possession of Vehicle and we may consider Vehicle as stolen, and may (a) issue and circulate theft notices, (b) cause arrest warrants to be issued, and/or (c) take any other steps we deem necessary to recover Vehicle. Renter hereby releases and discharges BARCO from any and all claims, suits or demands of every kind or nature whatsoever arising out of or relating to any alleged false arrest, imprisonment, detention, defamation of character, assault, malicious prosecution, trespass, invasion of civil rights or other claims arising out of or relating to the issuance of an arrest warrant for you or any other person operating Vehicle, or arising out of or relating to any other action by BARCO, including, but not limited to self-help, which we deem necessary to effect the return of Vehicle, or the collection of any monies due us under this Agreement.
13. BARCO shall have a lien on Renter's property in Vehicle for charges and expenses incurred by us under this Agreement, including those caused by damage to or destruction of Vehicle. You will furnish us upon demand with a certified statement describing the property and setting forth its actual value. If you fail to pay all rental and other charges when due, we shall have the right, as your agent, to sell at public or private sale, with or without notice to you, any property of yours in Vehicle in satisfaction of any such charge plus any costs of collection thereof.
14. States where you are using or operating Vehicle may charge sales and/or property tax on Vehicle. You are responsible for any applicable sales and/or property taxes with respect to Vehicle in any such state. We may include some or all of such taxes on your invoice (in addition to your rental fee) for payment to the taxing authorities. However, if such taxes are not included on your invoice, you are required, and hereby agree, to pay such taxes directly to the appropriate taxing authority, and you are liable to us for, and we are entitled to recover from you, any such taxes you fail to pay, for our remittance to such taxing authority, or for repayment to us if we already have paid the same.
15. Renter shall be responsible for and shall immediately pay any governmental fees or charges incurred while you have possession of Vehicle, including, but not limited to all tolls, and penalties, fees or forfeitures for traffic or parking infractions or violations, or the like. You shall also pay a service charge of \$50 for any of the above.
16. You will pay a convenience fee of 3% for any payment made by credit card, a service fee of \$35 for any check returned for insufficient funds, or for a credit card payment which is returned or denied, and a minimum cleaning fee of \$195 (and a minimum of \$250 for excessively dirty vehicles) upon the return of Vehicle. If Renter requests delivery of a Vehicle and does not accept the delivery at the agreed upon date, time, and location, Renter will be responsible for BARCO's delivery fee, as well as all costs incurred by BARCO in delivering and returning Vehicle to the origination point.
17. This Agreement is governed by and shall be enforced in accordance with Utah law, the state where Vehicle is registered and this Agreement is being administered. Any legal action between the parties regarding Vehicle or any other matter shall be conducted in such Court of the State of Utah as BARCO shall select, and Renter agrees to submit to the jurisdiction of such court for all purposes.
18. If Renter is an entity other than a publicly traded company, then by his or her signature(s) to this Agreement, the person(s) signing for Renter not only agrees to the terms and conditions above on behalf of Renter, but also agrees that he or she personally and unconditionally guarantees and promises to perform, and is liable for the performance by Renter of, all of Renter's obligations hereunder, including all payments to be made by Renter, as the same may exist from time to time.
19. You will pay all costs and expenses incurred in collection of amounts owed to BARCO hereunder, including court costs, reasonable attorneys' fees, and/or collection agency fees.
20. If Renter is an entity, by their signature(s) on this Agreement, the person(s) signing for Renter represents and agrees that he or she has actual authority to sign the Agreement on behalf of Renter.
21. The terms and conditions set forth on both sides of this instrument, together with the terms of all invoices and any addendum hereto, constitutes the entire Agreement between the parties. No rights of BARCO under this Agreement may be waived unless in writing and signed by a corporate officer of BARCO.

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